

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-1384

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF LEAH WASICKA, LICENSE NO. LPC 5635,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Leah Wasicka ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of case number 2018-1384. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent denies the following allegations, but acknowledges that if the Board were to prove the allegations at hearing, they would constitute a *prima facie* case of a violation of the Mental Health Practice Act ("Practice Act"), and would subject Respondent to discipline. The Board's allegations are as follows:
 - a. Beginning on or around April 2017, Respondent provided therapy to [redacted] and his minor children without obtaining proper consents from both parents for treatment.
 - b. Respondents destroyed the records for [redacted] minor children.

c. Respondent's billing practices were inappropriate, including using incorrect diagnosis codes, clients weren't present during the sessions, records did not support services billed, and inappropriate use of procedure codes.

d. Respondent failed to obtain a mandatory disclosure statement for the minor children.

5. Although Respondent disputes the allegations in paragraph 4 above, Respondent admits that if the allegations were proven by the Board at hearing, Respondent would have violated sections 12-43-214, 12-43-222(1)(b), (g)(l), (p), and (u), C.R.S., and Board Rule 16(a), which state:

12-43-214. Mandatory disclosure of information to clients. (1) Except as otherwise provided in subsection (4) of this section, every licensee, registrant, or certificate holder shall provide the following information in writing to each client during the initial client contact.

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(p) Has failed to comply with any of the requirements pertaining to mandatory disclosure of information to clients pursuant to section 12-43-214;

(u) Has falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries on patient records.

Board Rule 16. Records Required To Be Kept And Record Retention.

(a) General. Every licensed professional counselor shall create and shall maintain a record as defined in subsection (b) of this rule for each client, this record shall be retained for a period of seven (7) years, commencing on either the termination of professional counseling services or the date of last contact with the client, whichever is later. Exception. When the client is a child, the record shall be retained for a period of seven (7) years commencing either upon the last day of treatment or when the child reaches eighteen (18) years of age, whichever comes later, but in no event shall records be kept for more than twelve (12) years.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes her LPC license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board. Respondent agrees not to reapply for licensure as a professional counselor in the State of Colorado.

7. Following relinquishment of her LPC license, Respondent shall not perform any act requiring a license to practice at any time in the future.

8. Respondent also agrees not to register as a psychotherapist in the State of Colorado; nor will Respondent perform any act constituting psychotherapy as defined under section 12-43-201(9), C.R.S., at any time in the future.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to section 12-43-224, C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

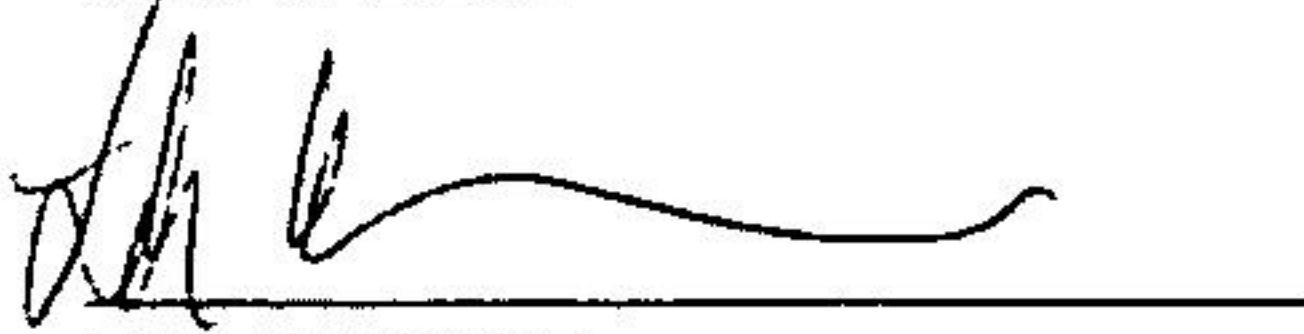
14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

15. This Order shall be admissible as evidence at any hearing held before the Board.

16. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT



LEAH WASICKA
LPC 5635

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


ARIANA BUSBY
Program Director

Effective this 1st day of August,
2019.